

HIPAA AND DATA SECURITY NOTICE

For healthcare, ABA, sensitive information, encryption, deletion, and secure handling.

Effective Date: 07/06/2026

1. Purpose

This HIPAA and Data Security Notice explains how Judo Marketing handles sensitive information for clients in healthcare, ABA therapy, wellness, and other regulated industries.

2. HIPAA-Compliant Platforms and Encryption

When applicable, Judo Marketing uses HIPAA-compliant and encrypted platforms to help protect sensitive client information. This may include secure storage, encrypted transmission, access controls, limited permissions, account authentication, administrative controls, and vendor safeguards.

HIPAA compliance depends on the full workflow, including the client's instructions, the systems used, the information shared, the purpose of processing, access permissions, and whether required agreements such as a Business Associate Agreement are in place.

3. Minimum Necessary Standard

Clients should not send unnecessary protected health information, patient data, client records, treatment details, medical information, insurance information, financial information, or other sensitive data. When sensitive data is needed for a project, the client should provide only the minimum necessary information through approved secure channels.

4. Business Associate Agreement

If Judo Marketing will create, receive, maintain, or transmit protected health information on behalf of a covered entity or another business associate, a Business Associate Agreement must be signed before protected health information is processed.

If no Business Associate Agreement has been signed, clients must not transmit protected health information to Judo Marketing.

5. 90-Day Deletion Rule

Sensitive information collected or processed as part of a client project is automatically deleted after 90 days unless a longer retention period is required for legal, billing, administrative, security, dispute resolution, audit, or active service purposes.

Deletion may not apply to information stored in legally required records, billing records, security logs, backups during normal backup cycles, opt-out records, or materials the client retains in its own systems.

6. Client Responsibilities

Clients are responsible for obtaining all required consents, permissions, authorizations, notices, and legal rights before sharing sensitive or regulated information with Judo Marketing.

Clients are responsible for determining whether HIPAA, state privacy laws, professional licensing rules, payer rules, school rules, employment laws, or other industry-specific requirements apply to their business and marketing activities.

7. Incident Response

If Judo Marketing becomes aware of a security incident involving sensitive information, it will take reasonable steps to evaluate, contain, document, and respond to the incident. When legal notification obligations apply, Judo Marketing will cooperate with the client and provide notices required by applicable law or agreement.

8. No Unsecured Sensitive Data

Clients should not send sensitive information through unsecured email, text message, social media direct message, public forms, or other unapproved channels. Judo Marketing may delete, reject, or request resubmission of sensitive information through a more secure method.